

C.A. No. 23-13396

**IN THE UNITED STATES COURT OF APPEALS
FOR THE ELEVENTH CIRCUIT**

AMERICAN SECURITIES ASSOCIATION AND CITADEL SECURITIES LLC,

Petitioners,

v.

U.S. SECURITIES AND EXCHANGE COMMISSION,

Respondent,

THE NASDAQ STOCK MARKET, LLC, ET AL., AND
CONSOLIDATED AUDIT TRAIL, LLC,

Intervenors.

On Petition for Review of an Order of the
United States Securities and Exchange Commission
SEC Release No. 34-98290

**UNOPPOSED TIME-SENSITIVE MOTION FOR
EXTENSION OF TIME TO RESPOND TO PETITIONERS'
MOTION FOR STAY AND INJUNCTIVE RELIEF**

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LLC*

**CERTIFICATE OF INTERESTED PERSONS
AND CORPORATE DISCLOSURE STATEMENT**

Pursuant to Federal Rule of Appellate Procedure 26.1 and 11th Circuit Rule 26.1-1, Movants Respondent Securities and Exchange Commission (“SEC”) and Intervenor Consolidated Audit Trail LLC (“CAT LLC”), the Nasdaq Stock Market LLC, Nasdaq BX, Inc., Nasdaq GEMX, LLC, Nasdaq ISE, LLC, Nasdaq MRX, LLC, Nasdaq PHLX LLC, New York Stock Exchange LLC, NYSE American LLC, NYSE Arca, Inc., NYSE Chicago, Inc., NYSE National, Inc., Cboe BYX Exchange, Inc., Cboe BZX Exchange, Inc., Cboe EDGA Exchange, Inc., Cboe EDGX Exchange, Inc., Cboe C2 Exchange, Inc., and Cboe Exchange, Inc provide the following certificate of interested persons.

The undersigned counsel of record certifies that the following listed persons and entities as described in Eleventh Circuit Rule 26.1-2 have an interest in the outcome of this case. These representations are made in order that the judges of this Court may evaluate possible disqualification or recusal.

1. **Alternative Investment Management Association**, *Amicus Curiae*.
2. **Altman, Jennifer G.**, Pillsbury Winthrop Shaw Pittman LLP, counsel for NYSE Intervenor-Applicants
3. **American Free Enterprise Chamber of Commerce**, *Amicus Curiae*.
4. **American Securities Association**, Petitioner
5. **ArentFox Schiff LLP**, counsel for Intervenor-Applicants Cboe BYX Exchange, Inc., Cboe BZX Exchange, Inc., Cboe EDGA Exchange, Inc., Cboe EDGX Exchange, Inc., Cboe C2 Exchange, Inc., and Cboe

Exchange, Inc.

6. **Ashbrook Byrne Kresge LLC**, counsel for *Amici Curiae* James Overdahl and S.P Kothari.
7. **Bailey, Andrew**, counsel for *Amicus Curiae* State of Missouri.
8. **Ballard Spahr LLP**, counsel for Intervenor The Nasdaq Stock Market LLC, Nasdaq BX, Inc., Nasdaq GEMX, LLC, Nasdaq ISE, LLC, Nasdaq MRX, LLC, and Nasdaq PHLX LLC.
9. **Baltz, Brian J.**, Willkie Farr & Gallagher LLP, counsel for Amicus Curiae Futures Industry Association.
10. **Barbero, Megan**, counsel for Respondent United States Securities and Exchange Commission.
11. **Barr, Willaim P.**, Torridon Law PLLC, counsel for *Amicus Curiae* American Free Enterprise Chamber of Commerce.
12. **Bash, John F.**, Quinn Emanuel Urquhart & Sullivan, LLP, counsel for *Amici Curiae* Senator Tom Cotton et al.
13. **Berman, Ari M.**, Pillsbury Winthrop Shaw Pittman LLP, counsel for NYSE Intervenor.
14. **Berry, Jonathan**, Boyden Gray PLLC, counsel for *Amicus Curiae* American Free Enterprise Chamber of Commerce.
15. **Bird, Brenna**, counsel for *Amicus Curiae* State of Iowa.
16. **Blask, Ariel**, Willkie Farr & Gallagher LLP, counsel for *Amicus Curiae* Futures Industry Association.
17. **Boden, Anastasia**, counsel for *Amici Curiae* Cato Institute and Investor Choice Advocates Network.
18. **Borse Dubai Limited**, owner of more than 10% of Nasdaq, Inc.'s shares
19. **BOX Exchange LLC**, member and participant of CAT LLC
20. **Boyle, Gregory**, counsel for Consolidated Audit Trail, LLC
21. **Boyden Gray PLLC**, counsel for *Amicus Curiae* American Free

Enterprise Chamber of Commerce.

22. **Bronni, Nicholas J.**, counsel for *Amicus Curiae* State of Arkansas.
23. **Cato Institute**, *Amicus Curiae*.
24. **Carr, Chris**, counsel for *Amicus Curiae* State of Georgia
25. **Cboe BYX Exchange, Inc.**, member and participant of CAT LLC
26. **Cboe BZX Exchange, Inc.**, member and participant of CAT LLC
27. **Cboe C2 Exchange, Inc.**, member and participant of CAT LLC
28. **Cboe EDGA Exchange, Inc.**, member and participant of CAT LLC
29. **Cboe EDGX Exchange, Inc.**, member and participant of CAT LLC
30. **Cboe Exchange, Inc.**, member and participant of CAT LLC
31. **Cboe Global Markets, Inc. (BATS: CBOE)**, direct or indirect parent company of Cboe BYX Exchange, Inc., Cboe BZX Exchange, Inc., Cboe EDGA Exchange, Inc., Cboe EDGX Exchange, Inc., Cboe C2 Exchange, Inc., and Cboe Exchange, Inc.
32. **Chenoweth, Mark S.**, counsel for *Amicus Curiae* New Civil Liberties Alliance.
33. **Citadel Securities GP LLC**, parent company of Citadel Securities LLC
34. **Citadel Securities LLC**, Petitioner
35. **Coleman, Russell**, counsel for *Amicus Curiae* Commonwealth of Kentucky.
36. **Committee on Capital Markets Regulation**, *Amicus Curiae*.
37. **Commonwealth of Kentucky**, *Amicus Curiae*.
38. **Commonwealth of Virginia**, *Amicus Curiae*.
39. **Competitive Enterprise Institute**, *Amicus Curiae*.
40. **Conley, Michael A.**, counsel for Respondent United States Securities and Exchange Commission.

41. **Connolly, J. Michael**, Consovoy McCarthy PLLC, counsel for Petitioner American Securities Association
42. **Consolidated Audit Trail, LLC**, a jointly owned limited liability company formed under Delaware state law through which the participants conduct the activities of the CAT NMS Plan
43. **Consovoy McCarthy PLLC**, counsel for Petitioner American Securities Association.
44. **Deutsch, Elizabeth**, Jenner & Block LLP, counsel for Intervenor Consolidated Audit Trail, LLC.
45. **Financial Industry Regulatory Authority, Inc.**, member and participant of CAT LLC
46. **Fitch, Lynn**, counsel for *Amicus Curiae* State of Mississippi.
47. **Flowers, Benjamin M.**, Ashbrook Byrne Kresge LLC, counsel for *Amici Curiae* James Overdahl and S.P. Kothari.
48. **Formella, John M.**, counsel for *Amicus Curiae* State of New Hampshire.
49. **Francisco, Noel J.**, Jones Day, counsel for Petitioner Citadel Securities LLC
50. **Futures Industry Association**, *Amicus Curiae*.
51. **Gershengorn, Ian Heath**, counsel for Consolidated Audit Trail, LLC
52. **Greenberg, Dan**, counsel for *Amicus Curiae* Competitive Enterprise Institute.
53. **Greenwalt, Paul, III**, counsel for Cboe BYX Exchange, Inc., Cboe BZX Exchange, Inc., Cboe EDGA Exchange, Inc., Cboe EDGX Exchange, Inc., Cboe C2 Exchange, Inc., and Cboe Exchange, Inc.
54. **Griffin, Tim**, counsel for *Amicus Curiae* State of Arkansas.
55. **Hardin, Tracey A.**, counsel for Respondent United States Securities and Exchange Commission.
56. **Hilgers, Michael T.**, counsel for *Amicus Curiae* State of Nebraska.

57. **Hopen, David A.**, Paul, Weiss, Rifkind, Wharton & Garrison LLP, counsel for *Amici Curiae* Securities Industry and Financial Markets Association et al.
58. **Hoyt, Joshua T.**, Jones Day, counsel for Petitioner Citadel Securities LLC
59. **Intercontinental Exchange, Inc. (NYSE: ICE)**, indirect parent of NYSE Intervenor-Applicants
60. **International Securities Exchange Holdings, Inc.**, sole LLC member of Nasdaq GEMX LLC, Nasdaq ISE LLC, and Nasdaq MRX LLC
61. **Investment Company Institute**, *Amicus Curiae*.
62. **Investor AB (Nasdaq Stockholm: INVEB)**, owner of more than 10% of Nasdaq, Inc.'s shares
63. **Investor Choice Advocates Network**, *Amicus Curiae*.
64. **Investors' Exchange, LLC**, member and participant of CAT LLC
65. **Jackley, Marty**, counsel for *Amicus Curiae* State of South Dakota.
66. **Jacobs, Dylan, L.**, counsel for *Amicus Curiae* State of Arkansas.
67. **Jenner & Block LLP**, counsel for Consolidated Audit Trail, LLC
68. **Jones Day**, counsel for Petitioner Citadel Securities LLC.
69. **Kastenberg, Stephen J.**, Ballard Spahr LLP, counsel for Movants The Nasdaq Stock Market LLC, Nasdaq BX, Inc., Nasdaq GEMX, LLC, Nasdaq ISE, LLC, Nasdaq MRX, LLC, and Nasdaq PHLX LLC
70. **Katsiff, Timothy D.**, Ballard Spahr LLP, counsel for Movants The Nasdaq Stock Market LLC, Nasdaq BX, Inc., Nasdaq GEMX, LLC, Nasdaq ISE, LLC, Nasdaq MRX, LLC, and Nasdaq PHLX LLC
71. **Kennedy, Jordan**, counsel for Respondent United States Securities and Exchange Commission.
72. **Knudsen, Austin**, counsel for *Amicus Curiae* State of Montana.
73. **Kobach, Kris W.**, counsel for *Amicus Curiae* State of Kansas.

74. **Kothari, S.P.**, *Amicus Curiae*.
75. **Kumar, Neal**, Willkie Farr & Gallagher LLP, counsel for *Amicus Curiae* Futures Industry Association.
76. **Labrador, Raúl R.**, counsel for *Amicus Curiae* State of Idaho.
77. **Lantieri, Paul**, Ballard Spahr LLP, counsel for Movants The Nasdaq Stock Market LLC, Nasdaq BX, Inc., Nasdaq GEMX, LLC, Nasdaq ISE, LLC, Nasdaq MRX, LLC, and Nasdaq PHLX LLC
78. **Little, Margaret A.**, counsel for *Amicus Curiae* New Civil Liberties Alliance.
79. **Lipshutz, Brian M.**, Paul, Weiss, Rifkind, Wharton & Garrison LLP, counsel for *Amici Curiae* Securities Industry and Financial Markets Association et al.
80. **Long-Term Stock Exchange, Inc.**, member and participant of CAT LLC
81. **Lucas, Brinton**, Jones Day, counsel for Petitioner Citadel Securities LLC
82. **MacLean, Matthew J.**, Pillsbury Winthrop Shaw Pittman LLP, counsel for NYSE Intervenor-Applicants
83. **Managed Funds Association**, *Amicus Curiae*.
84. **Marshall, Jonathan J.**, Jenner & Block LLP, counsel for Intervenor Consolidated Audit Trail, LLC.
85. **Marshall, Steve**, counsel for *Amicus Curiae* State of Alabama.
86. **Matro, Daniel E.**, counsel for Respondent United States Securities and Exchange Commission.
87. **McCotter, R. Trent**, Boyden Gray PLLC, counsel for *Amicus Curiae* American Free Enterprise Chamber of Commerce.
88. **MEMX LLC**, member and participant of CAT LLC
89. **Miami International Securities Exchange LLC**, member and participant of CAT LLC
90. **MIAX Emerald, LLC**, member and participant of CAT LLC

91. **MIAX PEARL, LLC**, member and participant of CAT LLC
92. **MIAX Sapphire, LLC**, member and participant of Intervenor Consolidated Audit Trail, LLC.
93. **Michel, Christopher G.**, Quinn Emanuel Urquhart & Sullivan, LLP, counsel for *Amici Curiae* Senator Tom Cotton et al.
94. **Miyares, Jason**, counsel for *Amicus Curiae* Commonwealth of Virginia.
95. **Modern Markets Initiative, Inc.**, sponsor of funding for brief for *Amici Curiae* James Overdahl and S.P. Kothari disclosed pursuant to Federal Rule of Appellate Procedure 29(a)(4)(E).
96. **Molzberger, Michael**, counsel for Cboe BYX Exchange, Inc., Cboe BZX Exchange, Inc., Cboe EDGA Exchange, Inc., Cboe EDGX Exchange, Inc., Cboe C2 Exchange, Inc., and Cboe Exchange, Inc.
97. **Montgomery, Sophia W.**, Jenner & Block LLP, counsel for Intervenor Consolidated Audit Trail, LLC.
98. **Moody, Ashley**, counsel for *Amicus Curiae* State of Florida.
99. **Morris, Andrew, J.**, counsel for *Amicus Curiae* New Civil Liberties Alliance.
100. **Morrissey, Patrick**, counsel for *Amicus Curiae* State of West Virginia.
101. **Murrill, Liz**, counsel for *Amicus Curiae* State of Louisiana.
102. **Nabors, David A.**, Quinn Emanuel Urquhart & Sullivan, LLP, counsel for *Amici Curiae* Tom Cotton et al.
103. **Nasdaq BX, Inc.**, Movant
104. **Nasdaq GEMX, LLC**, Movant
105. **Nasdaq, Inc. (Nasdaq: NDAQ)**, sole owner of LLC interest in The Nasdaq Stock Market LLC and Nasdaq PHLX LLC and parent company of Nasdaq BX, Inc.
106. **Nasdaq ISE, LLC**, Movant
107. **Nasdaq MRX, LLC**, Movant

108. **Nasdaq PHLX LLC**, Movant
109. **New York Stock Exchange LLC**, Intervenor-Applicant
110. **New Civil Liberties Alliance**, *Amicus Curiae*.
111. **NYSE American LLC**, Intervenor-Applicant
112. **NYSE Arca, Inc.**, Intervenor-Applicant
113. **NYSE Chicago, Inc.**, Intervenor-Applicant
114. **NYSE National, Inc.**, Intervenor-Applicant
115. **Oliwenstein, David**, Pillsbury Winthrop Shaw Pittman LLP, counsel for NYSE Intervenors.
116. **Orr, Caleb**, Boyden Gray PLLC, counsel for *Amicus Curiae* American Free Enterprise Chamber of Commerce.
117. **Overdahl, James**, *Amicus Curiae*.
118. **Paul, Weiss, Rifkind, Wharton & Garrison LLP**, counsel for *Amici Curiae* Securities Industry and Financial Markets Association et al.
119. **Paxton, Ken**, counsel for *Amicus Curiae* State of Texas.
120. **Phillips, David**, Jones Day, counsel for Petitioner Citadel Securities LLC
121. **Pillsbury Winthrop Shaw Pittman LLP**, counsel for NYSE Intervenors.
122. **Quinn Emanuel Urquhart & Sullivan, LLP**, counsel for *Amici Curiae* Senator Tom Cotton et al.
123. **Rabbitt, Brian C.**, Jones Day, counsel for Petitioner Citadel Securities LLC
124. **Reisner, Lorin L.**, Paul, Weiss, Rifkind, Wharton & Garrison LLP, counsel for *Amici Curiae* Securities Industry and Financial Markets Association et al.
125. **Representatives Mark Alford, Don Bacon, Michael Collins, Scott Fitzgerald, French Hill, Barry Loudermilk, Alex X. Mooney, Ralph Norman, John Rose, Keith Self, Randy Weber, and Steve Womack**, *Amici*

Curiae.

126. **Reyes, Sean**, counsel for *Amicus Curiae* State of Utah.
127. **Rokita, Theodore E.**, counsel for *Amicus Curiae* State of Indiana.
128. **Roth, Yaakov M.**, Jones Day, counsel for Petitioner Citadel Securities LLC
129. **Schulp, Jennifer**, counsel for *Amici Curiae* Cato Institute and Investor Choice Advocates Network.
130. **Schwartz, Yishai**, Paul, Weiss, Rifkind, Wharton & Garrison LLP, counsel for *Amici Curiae* Securities Industry and Financial Markets Association et al.
131. **Securities Industry and Financial Markets Association**, *Amicus Curiae*.
132. **Senators Tom Cotton, John Boozman, Mike Braun, Kevin Kramer, Steve Daines, Bill Hagerty, John Kennedy, Jerry Moran, Pete Ricketts, and Tim Scott**, *Amici Curiae*.
133. **Shanmugam, Kannon K.**, Paul, Weiss, Rifkind, Wharton & Garrison LLP, counsel for *Amici Curiae*, Securities Industry and Financial Markets Association et al.
134. **Skorup, Brent**, counsel for *Amici Curiae* Cato Institute and Investor Choice Advocates Network.
135. **Sobel, Zachary J.**, Quinn Emanuel Urquhart & Sullivan, LLP, counsel for *Amici Curiae* Senator Tom Cotton et al.
136. **State of Alabama**, *Amicus Curiae*.
137. **State of Arkansas**, *Amicus Curiae*.
138. **State of Florida**, *Amicus Curiae*.
139. **State of Georgia**, *Amicus Curiae*.
140. **State of Idaho**, *Amicus Curiae*.
141. **State of Indiana**, *Amicus Curiae*.

142. **State of Iowa**, *Amicus Curiae*.
143. **State of Kansas**, *Amicus Curiae*.
144. **State of Louisiana**, *Amicus Curiae*.
145. **State of Mississippi**, *Amicus Curiae*.
146. **State of Missouri**, *Amicus Curiae*.
147. **State of Montana**, *Amicus Curiae*.
148. **State of Nebraska**, *Amicus Curiae*.
149. **State of New Hampshire**, *Amicus Curiae*.
150. **State of North Dakota**, *Amicus Curiae*.
151. **State of Ohio**, *Amicus Curiae*.
152. **State of South Carolina**, *Amicus Curiae*.
153. **State of South Dakota**, *Amicus Curiae*.
154. **State of Texas**, *Amicus Curiae*.
155. **State of Utah**, *Amicus Curiae*.
156. **State of West Virginia**, *Amicus Curiae*.
157. **The Nasdaq Stock Market LLC**, Movant
158. **The Vanguard Group, Inc.**, owned 10% or more of Cboe Global Markets, Inc.'s common stock as of June 30, 2023
159. **Thoma Bravo UGP, LLC**, owner of more than 10% of Nasdaq, Inc.'s shares
160. **Torridon Law PLLC**, counsel for *Amicus Curiae* American Free Enterprise Chamber of Commerce.
161. **Unikowsky, Adam**, counsel for Consolidated Audit Trail, LLC
162. **United States Securities and Exchange Commission**, Respondent

163. **Virtu Financial, Inc.**, *Amicus Curiae*.
164. **Watkins, Devin**, counsel for *Amicus Curiae* Competitive Enterprise Institute.
165. **Watkins, Devin**, counsel for *Amicus Curiae* Competitive Enterprise Institute. Association.
166. **Wilson, Alan**, counsel for *Amicus Curiae* State of South Carolina.
167. **Wrigley, Drew H.**, counsel for *Amicus Curiae* State of North Dakota.
168. **Yost, Dave**, counsel for *Amicus Curiae* State of Ohio.

No publicly traded company or corporation, other than those identified above or in the certificates of interested persons filed by Petitioner on September 13, 2024, has an interest in the outcome of this case. Consolidated Audit Trail, LLC will file an amended certificate of interested persons should it become aware of a change in interests that would affect the disclosures as required by Federal Rule of Appellate Procedure 26.1 and Eleventh Circuit Rule 26.1-4.

Date: September 18, 2024

/s/ Ian Heath Gershengorn

Ian Heath Gershengorn

*Counsel for Intervenor Consolidated
Audit Trail, LLC*

**MOTION FOR EXTENSION OF TIME TO RESPOND
TO MOTION FOR STAY AND INJUNCTIVE RELIEF**

Pursuant to Federal Rules of Appellate Procedure 26(b) and 27, and Eleventh Circuit Rules 26-1 and 27-1, Respondent Securities and Exchange Commission (“SEC”) and Intervenors Consolidated Audit Trail LLC (“CAT LLC”), the Nasdaq Stock Market LLC, Nasdaq BX, Inc., Nasdaq GEMX, LLC, Nasdaq ISE, LLC, Nasdaq MRX, LLC, Nasdaq PHLX LLC, New York Stock Exchange LLC, NYSE American LLC, NYSE Arca, Inc., NYSE Chicago, Inc., NYSE National, Inc., Cboe BYX Exchange, Inc., Cboe BZX Exchange, Inc., Cboe EDGA Exchange, Inc., Cboe EDGX Exchange, Inc., Cboe C2 Exchange, Inc., and Cboe Exchange, Inc. (collectively, “Movants”), submit this unopposed, time-sensitive motion for a seven-day extension of time until September 30, 2024, to respond to Petitioners’ Motion for Stay and Injunctive Relief, Dkt. 112-1 (Sept. 13, 2024).

In accordance with Eleventh Circuit Rules 26-1 and 27-1(a)(5), Movants’ counsel have conferred with counsel for Petitioners. Petitioners take no position and do not oppose Movants’ seven-day extension request.

In support of this motion, Movants state as follows:

1. This case involves a challenge to a Securities and Exchange Commission order approving an amendment to the national market system plan governing the Consolidated Audit Trail, or the “CAT.” *See* Order Approving an Amendment to the National Market System Plan Governing the Consolidated Audit Trail,

Exchange Act Release No. 98,290, 88 Fed. Reg. 62,628 (Sept. 12, 2023) (“2023 Funding Order”). The amendment at issue modifies the funding model for the CAT and provides for CAT costs to be allocated based on an executed share model, with one-third of CAT historical and prospective costs to be borne by broker-dealers on the buy side of a transaction, one-third to be borne by broker-dealers on the sell side, and one-third to be borne by the exchanges and securities association that operate the CAT (the “Participants”).

2. This Court permitted CAT LLC and many of the Participants to intervene to defend the 2023 Funding Order. Briefing in this case was completed on May 15, 2024.

3. On September 13, 2024, Petitioners filed a motion to stay the 2023 Funding Order pending appeal in an effort to preclude collection of CAT costs by CAT LLC pursuant to fee filings submitted by Participants to the SEC in August 2024. These filings are the subject of distinct proceedings before the Commission. By statute, they are immediately effective upon filing, but they are subject to notice and comment and the Commission may, within 60 days, suspend their effectiveness and institute proceedings to determine whether they meet applicable statutory requirements. The fee filings that lie at the heart of Petitioners’ motion are not presently subject to judicial review. Petitioners further seek injunctive relief that would prohibit the collection of CAT-related fees by CAT LLC from Petitioners and other

broker-dealers, as well as from Participants themselves. Petitioners request a ruling from this Court on their motion by November 17, 2024.

4. Movants oppose Petitioners' motion. Under Federal Rules of Appellate Procedure 26(a)(1) and 27(a)(3), the current deadline for Movants to file an opposition is Monday, September 23, 2024.

5. Movants hereby request an extension of seven days, up to and including Monday, September 30, 2024, to respond to Petitioners' motion. Good cause supports this request for the reasons set forth below.

6. *First*, it will be difficult for Movants to respond to Petitioners' motion within the default time limit. Petitioners filed their motion on a Friday evening, leaving a limited number of business days for preparation of a response before the default deadline. There are a large number of Intervenor in the case, and Intervenor CAT LLC has approximately two dozen Participants. Coordination of all the necessary parties will be near impossible within the default timeframe.

7. *Second*, Petitioners' motion raises several complex issues, including the interaction between the requested stay of the 2023 Funding Order and the separate Commission proceedings related to the fee filings, as well as the fact that Petitioners seek injunctive relief against the Participants, including those that are not parties before this Court, in order to prohibit them "from trying to collect any CAT fees

from broker-dealers.” Petitioners’ Mot. at 17. These complexities of Petitioners’ motion warrant additional time to respond.

8. *Third*, there is no prejudice to Petitioners or the Court from a seven-day extension. Were Movants to file opposition(s) on September 30, this Court would still have approximately seven weeks in which to rule on Petitioners’ motion within the timeframe Petitioners have requested.

* * * *

For the foregoing reasons, Movants respectfully request that the Court grant their unopposed motion for a seven-day extension of time until September 30, 2024, to respond to Petitioners’ Motion for a Stay and Injunctive Relief.

Date: September 18, 2024

Respectfully submitted,

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/s/ Ian Heath Gershengorn

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Inc., Cboe EDGA Exchange, Inc.,
Cboe EDGX Exchange, Inc., and
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LLC, Nasdaq ISE, LLC, Nasdaq
MRX, LLC, and Nasdaq PHLX
LLC*

CERTIFICATE OF COMPLIANCE

I hereby certify that this motion complies with the word limit set forth in Federal Rule of Appellate Procedure 27(d)(2)(A) because, excluding the parts of the document exempted by Federal Rules of Appellate Procedure 27(a)(2)(B) and 32(f), this motion contains 786 words.

I further certify that this motion complies with the typeface requirements set forth in Federal Rule of Appellate Procedure 27(d)(1)(E) and with the type-style requirements set forth in Federal Rule of Appellate Procedure 32(a)(5) and 32(a)(6) because it has been prepared using 14-point Times New Roman font in Microsoft Office Word 365.

Date: September 18, 2024

/s/ Ian Heath Gershengorn

Ian Heath Gershengorn

*Counsel for Intervenor Consolidated
Audit Trail, LLC*

CERTIFICATE OF SERVICE

I certify that on September 18, 2024, I electronically filed the foregoing with the United States Court of Appeals for the Eleventh Circuit through the Court's CM/ECF system. Parties represented by registered CM/ECF users will be served by the CM/ECF system.

/s/ Ian Heath Gershengorn

Ian Heath Gershengorn

*Counsel for Intervenor Consolidated
Audit Trail, LLC*

CERTIFICATE OF CONFERENCE

I certify that counsel for CAT LLC conferred with counsel for all parties. Petitioners American Securities Association and Citadel Securities LLC take no position on this motion. All other parties join this motion for an extension.

/s/ Ian Heath Gershengorn

Ian Heath Gershengorn

*Counsel for Intervenor Consolidated
Audit Trail, LLC*